



File No.: EXP202102044

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated August 11, 2023, and based on the following:

FACTS

FIRST: On August 11, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202102044, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on August 14, 2023, as recorded in the acknowledgment of receipt in the file.

SECOND: The appellant submitted a reconsideration appeal on August 14, 2023, to this Spanish Agency for Data Protection, fundamentally arguing that Article 83.1 of Law 9/2014, of May 9, establishes: "In the case of a continued infringement, the initial date for the computation will be the date on which the infringing activity ceases or the date of the last act with which the infringement is completed."

He expressly indicates:

"As relevant dates concerning the matter at hand, we have:

- The dates of calls received on our mobile phone number from the company VODAFONE: between 02/05/2021 and 02/09/2021 (more than five calls received)
- The date of filing the complaint or claim before that A.E.P.D.: 07/07/2021, 23/08/2021, and 02/09/2021

For all the above reasons, because archiving the proceedings would eliminate the deterrent effect that the insignificant sanction imposed has on the company VODAFONE, which could be tempted to repeat the reported acts, the archiving of the proceedings should not be agreed upon by that Agency for Data Protection, as it would be understood that any deadline has been fulfilled and, consequently, the infringement is not time-barred."

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted, which was already indicated in the resolution now being appealed:

"The facts presented (the violation of the right to object) could constitute an infringement by the respondent of Article 48.1.b) of the LGT, as set forth in its Title III, which states:

"1. Regarding the protection of personal data and privacy in relation to subscriber directories, end users of electronic communications services shall have the following rights:

(...)

b) To object to receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

Although the aforementioned article does not establish such a right, we must refer to the data protection regulations that govern the right to object: Article 21 of the GDPR (Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data) and Article 23 of the LOPDGDD (Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights).

This infringement is classified as “minor” in Article 78.11) of said regulation, which considers as such: “The failure to comply with public service obligations, public obligations, and the violation of the rights of consumers and end users as established in Title III of the Law and its implementing regulations,” and may be sanctioned with a fine of up to €50,000, in accordance with Article 79.d) of the aforementioned LGT.

Article 83.1 of the LGT establishes the statute of limitations for infringements, indicating:

1. The infringements regulated in this Law shall be time-barred, very serious ones, after three years; serious ones, after two years; and minor ones, after one year.

In the present case, the complainant states that on July 7 and September 2, 2021, he received unsolicited commercial calls on a mobile phone line owned by him, despite being registered in the Robinson List since 2019, which would constitute a violation of Article 48.1.b) of the LGT, in relation to Article 21 of the GDPR and Article 23.4 of the LOPDGDD.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/4

The statute of limitations is suspended with the initiation and notification of the agreement to commence the sanctioning procedure, therefore the statute of limitations for the infringement occurred on September 2, 2022.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution; furthermore, it has been submitted outside the legally established deadline.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on August 11, 2023, in file EXP202102044.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

181-111122

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/4

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es